1. It must be shown that the two enactments contain inconsistent and irreconcilable provisions so that they cannot stand together or operate in the same field.

2. There can be no repeal by implication unless the inconsistency appears on the face of the two statutes.

3. Where the two statutes occupy a particular field, but there is room or possibility of both the statutes operating in the same field without coming into collision with each other, no repugnancy results.

4. Where there is no inconsistency but a statute occupying the same field seeks to create district and separate offences, no question of repugnancy arises and both the statutes continue to operate in the same field.

Article 254 also contains an exception to the above rule of repugnancy. It says that if the state law has been reserved for the consideration of the President and has received his assent, then the state law shall prevail over the parliamentary law and operates in that state as valid law. However, the parliament may again supersede the state law (which has been assented to by the President) by subsequently enacting a law on the same matter. If the Parliament enacts such a law, then the state law would be void to the extent of repugnancy with the parliamentary law.

3. Repugnancy Outside the Concurrent List

The question of repugnancy between the Parliamentary legislation and State legislation arises in two ways. First, where the legislations, though enacted with respect to matters in their allotted spheres, overlap and conflict. Second, where the two legislations are with respect to matters in the Concurrent List and there is a conflict. In both the situations, the Parliamentary legislation will predominate, in the first, by virtue of non-obstante clause in Article 246(1); in the second, by reason of Article 254 (1).[62]

The Supreme Court has further explained the above points of repugnancy in the following way[63]:

“The question of repugnancy under Article 254 (1) between a law made by Parliament and a law made by the State Legislature arises only in case both the legislations occupy the same field with respect to one of the matters enumerated in the Concurrent List, and there is direct conflict between the two laws. It is only when both these requirements are fulfilled that the State law will, to the extent of repugnancy become void. Article 254(1) has no application to cases of repugnancy due to overlapping found between List II on the one hand and List I and List III on the other. If such overlapping exists in any particular case, the State law will be ultra vires because of the non-obstante clause in Article 246(1).”

DOCTRINE OF PROSPECTIVE OVERRULING

1. Meaning of the Doctrine

The doctrine of prospective overruling is an American doctrine. It was applied in India for the first time by the Supreme Court in the *Golak Nath* case[64] (1967).

When a court overrules its earlier decision and announces a new ruling, it can restrict the application of the new ruling only to the future transactions so that the validity of the past transactions is not affected. This is known as the doctrine of prospective overruling. In other words, this doctrine enables a court to overrule an old precedent (stare decisis) from a future date only and not retrospectively.